

HOUSE No. 2689

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the requirement of fuel gas alarms/detectors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>1/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>7/29/2025</i>

HOUSE No. 2689

By Representative Roy of Franklin, a petition (accompanied by bill, House, No. 2689) of Jeffrey N. Roy relative to the requirement and regulation of fuel gas alarms or detectors in certain buildings. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the requirement of fuel gas alarms/detectors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Chapter 148 of the General Laws is amended by adding Paragraphs (a)
2 through (i) as a new Section 26F3/4.

3 (a) "Fuel gas alarm/detector" means an alarm device that is certified by an independent
4 third-party and that; (i) complies with UL 1484 standards for residential devices for the detection
5 of explosive quantities of methane and propane gases or; (ii) complies with UL 2075 standards
6 for commercial devices for the detection of explosive quantities of methane and propane gases,
7 unless such standards are superseded by rules adopted by the board of fire prevention
8 regulations; and (iii) has ETL or UL labeling. Said ETL or UTL labeling shall be visible on all
9 fuel gas alarms/detectors for inspection purposes.

10 (b) Every dwelling, building or structure, including those owned or operated by the
11 commonwealth, occupied in whole or in part for residential or commercial purposes, that:
12 contains equipment including, but not limited to, a furnace, boiler, water heater, fireplace or any

other apparatus, appliance or device that burns an explosive gas shall be equipped by the owner with working, approved fuel gas alarm/detector in conformance with the requirements of the board of fire prevention regulations; provided, however, that such requirements shall include, but not be limited to, a requirement that a landlord or superintendent shall install either approved monitored interconnected, battery-powered alarms or approved electrical wiring alarms as defined by the board, as are required to make the alarms operational at the beginning of any rental period by lease or otherwise and shall maintain, an end-of-life indicator, and, if necessary, replace batteries or such battery-operated or electric hardwired fuel gas alarm/detector annually thereafter to insure their continued operability.

(c) The board of fire prevention regulations shall promulgate such regulations as may be necessary to effectuate this section including, but not limited to, the type, installation, location, maintenance and inspectional requirements of fuel gas alarms/detectors, a standardized certification form for installers pursuant to subsection (i), and a phased-compliance timeline pursuant to subsection (j)..

(d) Every dwelling, building or structure, occupied in whole or in part for residential or commercial purposes, shall, upon sale or transfer of such dwelling, building or structure, be inspected by the head of the fire department for compliance with the requirements of this section.

(e) The state building code may impose stricter fuel gas alarm/detector requirements for (i) multifamily dwellings, including but not limited to requiring separate systems for common areas and units in multifamily buildings; and (ii) new construction or dwellings, buildings, or structures substantially renovated so as to constitute the equivalent of new construction, including requiring interconnected alarms. Every such dwelling building or structure, occupied

in whole or in part for residential or commercial purposes, shall, upon sale or transfer of such dwelling, building or structure, be inspected by the head of the fire department for compliance with the fuel gas alarm/detector requirements of the state building code in effect on the date of the issuance of the relevant building permit.

(f) The department of public health shall promulgate such rules and regulations as may be necessary to effectuate subsection (a) into the state sanitary code as established under section 127A of chapter 111.

(g) All fuel gas alarms/detectors shall be installed in accordance with NFPA 715, Standard for the Installation of Fuel Gases Detection and Warning Equipment. To ensure proper installation in accordance with this subsection, installers of fuel gas alarms shall be required to complete installation training certifications.

(h) Any installer that installs a fuel gas alarm/detector pursuant to this act shall be required to submit a standardized certification form to the local government and fire department in the municipality in which the dwelling, building or structure, occupied in whole or in part for residential or commercial purposes, is located.

(i) Within 18 to 24 months of the promulgation of regulations pursuant to subsections (b) and (f), fuel gas alarms/detectors shall be installed pursuant to subsection (a). The installation of said fuel gas alarms/detectors shall follow a risk-based phased compliance timeline developed by the board of fire prevention regulations.